

Court No. - 2

Case :- WRIT - C No. - 555 of 2023

Petitioner :- Shri Abhijeet Singh

Respondent :- Madhyanchal Vidhyut Vitran Nigam Ltd.
Thru. Its Managing Director Lko. And Others

Counsel for Petitioner :- Aakash Prasad, Amitav Singh

Counsel for Respondent :- Amit Kumar Dwivedi, C.S.C.

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

(1) Heard the learned counsel for the petitioner and Shri Amit Kumar Dwivedi, who appears for the Respondent nos.1 & 2 and the learned Standing Counsel who appears on behalf of the Respondent no.3 and perused the record.

(2) This petition has been filed by the petitioner for the following main prayers:-

"(i) Pass an order or direction in the nature of Certiorari quashing the impugned Demand Notice dated 30.12.2021 (Annexure No. A-1).

(ii) Pass an order or direction in the nature of Certiorari quashing the impugned Notice of Recovery dated 19.09.2022 and the consequently instituted Recovery Proceedings (Annexure No. A-2)."

(3) It is the case of the petitioner that the Demand Notice has been issued in contravention of the provision of Section 56 of Sub-Section 2 of the Electricity Act, 2005, and contravention of the provision of the Clause 6.15 of the Electricity Supply Code, 2005 as there is a gross delay of over 4 years from the date when the amount became due. The respondents have not served any notice regarding any dues with respect to LMV-2 connection in questions and have never showed any due amount as arrears in any notice or communication prior to the impugned Demand Notice dated 30.12.2021.

(4) Learned counsel for the Respondent nos.1 and 2 has pointed out that the petitioner is not disputing his liability to pay the arrears of the Bill. He is mainly aggrieved by the coercive action taken or proposed to be taken by the respondents, otherwise also the petitioner has remedy under Paragraph 6.5 of the Electricity Supply Code, 2005.

(5) This petition is **finally disposed of** with a direction to the petitioner to make an appropriate application to the Executive Engineer of the concerned Division under Paragraph-6.5 of the Electricity Supply Code, 2005, within a period of **ten days** from today. If such application is made, the Executive Engineer, concerned shall pass appropriate orders, in accordance with law, after giving due opportunity of hearing to the petitioner within a period of **six weeks** thereafter.

(6) For a period of **eight weeks'** or till the date on the decision of the application of the petitioner whichever is earlier, the impugned Demand Notice shall be kept in abeyance and shall abide by the final order passed on the application of the petitioner by the Competent Authority.

Order Date :- 24.1.2023

N.PAL